

The Chessman Declaration indicates that Officer Riley was “contacted by the then-current tenant” who indicated electrical and structural failures, ceiling bows, gaps, leaks and mold.” (*Id.* at ¶ 7.) City does not provide any evidence of this communication which amounts to hearsay within hearsay given the declaration is by Officer Chessman. (*Id.* at ¶ 7.) The 6/26/2023 Instigative Inspection Notice again only references unpermitted additions, but not any dangerous conditions. (*Id.* at Exhibit J.)

Officer Chessman conducted another inspection on 5/31/2024 and only notes that he found the Unpermitted Construction, “...was approximately 2-feet from the property line in violation of the City’s 5-foot setback requirement.” (*Id.* at ¶ 21.) Officer Chessman does not note any dilapidated or dangerous conditions – just a setback issue.

Based on the evidence submitted by the City, the most recent inspection, conducted on 7/2/2024 by Officer Chessman and Building Safety Supervisor Matt Burnell mentions only that they determined the Unpermitted Construction did not qualify as an ADU because there was no kitchen and that it could not be a junior ADU because it was not attached to the main mobile home. (*Id.* at ¶ 24.) The most recent photos provided by the City, taken on 7/2/2024, show some ceiling peeling and stains. (*Id.* at Exhibit X.) The corresponding notice generally states that there are “numerous conditions that are health and safety conditions” but there is also no indication anyone is residing in the Unpermitted Construction at this time. (*Id.* at Exhibit Y.) This evidence is insufficient for the City to meet its burden to show that the drastic remedy of a receivership is warranted.

2.

CASE #	CASE NAME	HEARING NAME
CVME2606860	COUNTY OF RIVERSIDE VS DIMASSA	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Hearing Required.

3.

CASE #	CASE NAME	HEARING NAME
CVME2609939	KULPACA VS FARMERS INSURANCE EXCHANGE	MOTION TO COMPEL ARBITRATION

Tentative Ruling: Grant the petition. Arbitration to be completed within 180 days. Set an OSC re: failure to complete Arbitration on March 23, 2027, with sanctions not to exceed \$1,500. Petitioners demonstrates a valid arbitration agreement pursuant to statute. “Any demand or petition for arbitration shall contain a declaration, under penalty of perjury, stating whether (i) the insured has a workers’ compensation claim; (ii) the claim has proceeded to findings and award or settlement on all issues reasonably contemplated to be determined in that claim; and (iii) if not, what reasons amounting to good cause are grounds for the arbitration to proceed immediately.” (Ins. C. § 11580.2(f).) The demand sent by certified mail indicates under penalty of perjury that there was no worker’s compensation claim, and that the Petitioners suffered injury pursuant to an underinsured motorist. (Reply Decl., Ex. 4.) That is sufficient.